

Satyaveer Singh v. Executive Engineer, Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 16 March 2010 · Writ - C No. 12750 of 2010 · **Writ dismissed; petitioner relegated to Supply Code 2005**

HEADNOTE

A writ seeking mandamus to survey and physically verify whether installations of a billed tube-well connection exist is not the appropriate proceeding; the consumer is left to remedies under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Satyaveer Singh sought a mandamus directing Paschimanchal Vidyut Vitran Nigam Ltd. to survey and physically verify his tube-well site and surrounding locality to ascertain whether electric poles, insulators, a transformer and other installations relating to connection no. 53/775 in his name existed. The licensee stated that the connection had been energised on 1 February 1997 and that dues and recovery had been initiated. The petitioner maintained that the connection itself was not in existence and required physical verification.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

writ forum; relegated to Supply Code

HOLDING

Writ proceedings are not the appropriate forum for a direction to survey and physically verify the existence of installations relating to a billed electricity connection. The petitioner may seek relief under the U.P. Electricity Supply Code, 2005. The writ petition was dismissed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — EXISTENCE OF CONNECTION NO. 53/775 AND RELATED INSTALLATIONS

Physical verification of the tube-well site, and the dues and recovery, were left to Supply Code remedies. ¶ 1